

a nullity, that the executor is bound, at all events, to provide for the payment of debts out of the assets in a due course

314; *May v. Wannemacher*, 111 Mass. 202; and that too within a certain time; *Whitney v. Kelley*, 67 Me. 377; *Carr v. Dole*, 17 Me. 358. If such an assignment is intended to delay or hinder creditors it will be void; *Bodley v. Goodrich*, 7 How. 277; *Jessup v. Hulse*, 29 Barb. 539; *Knight v. Packer*, 1 Beasley's Ch. 214; 72 Am. Dec. 388; *Baldwin v. Peet*, 22 Tex. 708; 75 Am. Dec. 806. The debtor must cease to have any control over the property; *Planck v. Schermerhorn*, 3 Barb. Ch. 644; *Hardcastle v. Fisher*, 24 Mo. 70; *Pope v. Brandon*, 2 Stew. 401; 20 Am. Dec. 49; *Reed v. Emery*, 8 Paige, 417; *Litchfield v. White*, 3 Sandf. 547. Fraud vitiates an assignment, and that may be evidenced in a variety of ways; *Bennett v. Union*, 5 Humph. 612; *Mitchell v. Beal*, 8 Yerg. 142; *Hindman v. Dill*, 11 Ala. 689; *Sheldon v. Dodge*, 4 Denio, 218; *Meacham v. Sternes*, 9 Paige, 398; *D'Ivernois v. Leavitt*, 23 Barb. 63. A power to sell other than for cash may or may not affect the trust; *Pierce v. Brewster*, 32 Ill. 268; *Booth v. McNair*, 14 Mich. 19; *Page v. Olcott*, 28 Vt. 465; *Neally v. Ambrose*, 21 Pick. 185; *Ely v. Hair*, 16 B. Mon. 230; a power to sell does give power to bind estate by a covenant of warranty; *Welsh v. Davis*, 3 S. C. 110; likewise possession of the trust property by the settlor; *Foster v. Saco Co.* 12 Pick. 451; *Coburn v. Pickering*, 3 N. H. 415; 14 Am. Dec. 375; *Putnam v. Osgood*, 52 N. H. 148; *Strong v. Carrier*, 17 Conn. 319; *Rogers v. Vail*, 16 Vt. 329; *Brooks v. Marbury*, 11 Wheat. 82; but see *Lockhart v. Wyatt*, 10 Ala. 231; 44 Am. Dec. 481; likewise of a reservation of a surplus to the settlor; *Dana v. Lull*, 17 Vt. 390; *Doremus v. Lewis*, 8 Barb. 124; *Austin v. Johnson*, 7 Humph. 191; *Partridge v. Messer*, 14 Gray, 180; *Case v. Gerrish*, 15 Pick. 50. The creditors must not be required to cancel their claims until a settlement is made; *Grover v. Wakeman*, 11 Wend. 187; *Doe v. Scribner*, 41 Me. 277; *Hind v. Silsby*, 10 N. H. 108; *Brown v. Lyon*, 17 Ala. 659; but see *Halsey v. Whitney*, 4 Mason, 207; *Nostrand v. Atwood*, 19 Pick. 281; *Skipwith v. Cunningham*, 8 Leigh, 272. An assignment containing trust for assignor is void in some states; *Pettibone v. Stevens*, 15 Conn. 19; 38 Am. Dec. 57. The difference between a sale and an assignment is that in case of a sale a consideration passes, if an assignment, it does not; *Ruhl v. Phillips*, 48 N. Y. 125; 8 Am. Rep. 522. The beneficial ownership of property, assigned for creditors, is in the creditors for whom trust is created, and in those holding collateral, as well as in those who do not; *Patten's App.* 45 Pa. St. 151; 84 Am. Dec. 479. Trustee may use discretion in selling and need not always sell immediately for cash; *Inloes v. American Ex. Bank*, 11 Md. 173; 69 Am. Dec. 190; see *McCleery v. Allen*, 7 Neb. 21; 29 Am. Rep. 377; a reservation to debtor not fraudulent, and sale may be either public or private; *Hoffman v. Mackall*, 5 Ohio St. 124; 64 Am. Dec. 637. Property should not be kept more than a year; *Grimsley v. Hooker*, 3 Jones Eq. 4; 67 Am. Dec. 227. Trustee may be allowed to cultivate land till sold; *Dubose v. Dubose*, 7 Ala. 235; 42 Am. Dec. 588.

If the assignment has been executed, delivered, and assented to, if assent is necessary, it cannot then be revoked; *Petrikina v. Davis*, 1 Morris, 296; *Robertson v. Sublett*, 6 Humph. 313; *Ingram v. Kirkpatrick*, 6 Ired. Eq. 463; 51 Am. Dec. 428; *Scull v. Reeves*, 2 Green's Ch. 84; 29 Am. Dec. 694; a debtor cannot make an assignment providing for the settlement of his estate for his own use; *Mackason's App.* 42 Pa. St. 330; 82 Am. Dec. 517. The